

24VECV01001 24VECV01001

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24VECV01001 Hearing Date: August 21, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TIAMOOD

BIDARI, an individual,

Plaintiff,

vs.

AHANG

MIRSHOJAE aka AHANG ZARIN KELK aka AHANG Z. KELK aka AHANG ZARRIN KELK aka
AHANG Z. MIRSHOJAE, an individual, and 5975-5999 TOPANGA CANYON BLVD LLC, a
California limited liability company, 1028 SAN FERNANDO ROAD LLC, a
California limited liability company, YEKTA LLC, a California limited
liability company, and DOES 1-10 inclusive,

Defendants.

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CASE NO.: 24VECV01001

Related Case No.: BC676438

ORDER

DENYING DEFENDANT'S MOTION TO STAY PROCEEDINGS OR ALTERNATIVELY STAY
DISCOVERY

I.

BACKGROUND

This is a fraudulent transfer action. Plaintiff
Taimoor Bidari ("Plaintiff") alleges by virtue of a malicious prosecution
lawsuit, Plaintiff is a creditor of Defendant Ahang Mirshojae ("Defendant") and
now seeks millions of dollars in damages stemming from Defendant's false
allegations against him. Through this fraudulent transfer action, Plaintiff
seeks to avoid Defendant's fraudulent transfers of her LLC interests and to enjoin
Defendant from further transfer of her interests in the LLC Defendants, Topanga
Canyon Blvd LLC, 1028 San Fernando Road LLC, and Yekta LLC, or the assets of
the LLCs themselves.

Defendants

moves to stay proceedings.

II.

PROCEDURAL

HISTORY

On March 5, 2024, Plaintiff filed a Complaint
alleging (1) Fraudulent Transfer.

On March 11, 2024, Plaintiff filed three Notices of Lis Pendens.

On September 19, 2017, Plaintiff filed his First Amended Complaint ("FAC") alleging (1) Fraudulent Transfer.

On February 14, 2025, Defendant filed an Answer.

On July 23, 2026, Defendant filed the instant Motion.

On August 10, 2026, Plaintiff filed an Opposition

On August 14, 2026, Defendant filed a Reply.

III.

LEGAL STANDARD

"The Constitution does not ordinarily require a stay of civil proceedings pending the outcome of criminal proceedings . . . 'In the absence of substantial prejudice to the rights of the parties involved, [simultaneous] parallel [civil and criminal] proceedings are unobjectionable under our jurisprudence. . . . Nevertheless, a court may decide in its discretion to stay civil proceedings . . . when the interests of justice seem . . . to require such action.'" (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885, quoting Keating v. Office of Thrift Supervision (9th Cir.1995) 45 F.3d 322, 324.)[1]

In deciding whether to stay proceedings when a civil defendant faces parallel criminal charges, courts engage in a two-step process. First, the decision should be made "'in light of the particular circumstances and competing interests involved in the case' . . . This means the decision maker should [(1)] consider 'the extent to which the defendant's fifth amendment rights are implicated.' [Citation.]" (Keating, 45 F.3d at 324.) Additionally,

the court should consider the following: "(2) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (3) the burden which any particular aspect of the proceedings may impose on defendants; (4) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (5) the interests of persons not parties to the civil litigation; and (6) the interest of the public in the pending civil and criminal litigation." (Avanti!, 79 Cal.App.4th at 885 citing Keating, 45 F.3d at 325.) "[I]t has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter." (Pacers, Inc. v. Superior Court (1984) 162 Cal.App.3d 686, 690.)

"[T]he privilege is properly invoked whenever the witness's answers 'would furnish a link in the chain of evidence needed to prosecute' the witness for a criminal offense. [Citation.]" (People v. Cudjo (1993) 6 Cal.4th 585, 617.) "[I]t need only be evident from the implications of the question, in the setting in which it is asked, that a responsive answer to the question or an explanation of why it cannot be answered might be dangerous because injurious disclosure could result." (Id.)

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IV.

EVIDENTIARY OBJECTIONS

The Court

overrules Plaintiff's objections to the Declaration of Daniel Wu and Declaration of Ahang Mirshojae. The Court overrules Defendant's objections to the Declaration of Christopher Beatty.

V.

ANALYSIS

Defendant

requests the Court stay all proceedings pending resolution of the criminal case or, alternatively, stay discovery. Defendant asserts the criminal trial is

expected to take place within the next twelve months. (See Mot. at 4:9-10.) First, Defendant argues there is substantial overlap of witnesses and subject matter between this action and the criminal action. (See Mot. at 6:8-20.) Defendant is currently being prosecuted for the murder of her former husband, Hamid Mirshojae. (See Mot. at 3:5-7, 3:27-4:2.) Defendant argues discovery in this action could furnish evidence to be used against her in the criminal action and her refusal to testify on Fifth Amendment grounds permits adverse inferences which would impair her ability to defend herself in this action. (See *id.*, at 6:17-19, 7:10-12, citing *Baxter v. Palmigiano* (1976) 425 U.S. 308, 318, 8:22-27.) Second, Defendant argues Plaintiff would not be prejudiced by a stay because he has already recorded notices of lis pendens against the three real properties he contends were fraudulently transferred. (See Mot. at 8:10-17.)

Third, Defendant argues proceeding with this case would burden her ability to defend herself as it has been difficult to focus on this case given the upcoming criminal trial and to communicate with her counsel while incarcerated. (See Declaration of Daniel Wu filed July 23, 2026, ¶ 3; Declaration of Ahang Mirshojae filed July 23, 2026, ¶ 5.) Fourth, Defendant argues it would be judicially efficient to stay this action because parallel factual issues may be resolved and resolution of the criminal matter may likely prompt settlement. (See Mot. at 10:11-21.) Finally, Defendant argues the interests of nonparties weighs neutral and the public interest favors integrity in the criminal justice system which favors a stay of this action. (See *id.*, at 10:25-27.)

Alternatively, Defendant requests the Court stay discovery because Defendant cannot meaningfully participate in discovery without waiving her privilege against self-incrimination. (See Mot. at 11: 25-12:2.)

In opposition, Plaintiff argues a stay is not warranted because Defendant's Fifth Amendment rights are not implicated by this action. Plaintiff argues the fraudulent transfers challenged in this action occurred in 2021 and involve Defendant's mother and children. (See Opp. at 4:28-5:7.) Meanwhile, Plaintiff argues, the homicide underlying the criminal action occurred in 2024 and cannot reasonably be connected to property transfers that occurred years earlier. (See *id.*, citing *F.T.C. v. J.K. Publications, Inc.* (C.D. Cal. 2000) 99 F. Supp. 2d 1176 [additionally finding the burden on Fifth Amendment privilege was

minimal because the criminal charges related to acts that occurred after the commencement of the civil case[.]) Next, Plaintiff argues a stay until resolution of a criminal trial would prejudice Plaintiff. Plaintiff argues although a recorded lis pendens mitigates eventual collection, the issue remains that Defendant continues to transfer assets through her family and shell entities given her history of the same. (See Mot. at 6:14-7:8; See Declaration of Christopher D. Beatty filed August 10, 2026, ¶¶ 9, 11.)

Third, Plaintiff

argues the record refutes Defendant's contention she is unable to defend herself while incarcerated as she has obtained counsel and is actively litigating the related action. (See Mot. at 8:3-12.) Fourth, Plaintiff argues the nonparty and public-interest factors are neutral in this private creditor dispute and don't favor a stay. (See id., at 9:12-13.) Finally, Plaintiff argues Defendant's alternative request to stay discovery is more efficiently resolved when a genuine issue arises. (See id., at 9:23-27.)

In reply,

Defendant argues F.T.C. is distinguishable

because the 2021 fraudulent transfers and 2024 homicide are not mutually exclusive, they both require investigation into Defendant's financial relationship with her former husband, which is central to the civil and criminal actions. (See Reply at 2:25-3:10, 4:5-8.) Defendant also argues F.T.C. is distinguishable because she has not provided any testimony on any substantive issues in the civil case and she has raised Fifth Amendment concerns. (See id. at 2:25-3:10.) Defendant reasserts Plaintiff will not be prejudiced by a stay because there is no evidence she continues to fraudulently transfer assets and Plaintiff's recorded lis pendens will facilitate Plaintiff's judgment, as it has before. (See id., at 5:5-13.) Defendant further contends she is amenable to a stay through a date certain, at the expiration of which the Court may reassess the necessity and scope of any continued stay in light of the criminal proceeding's status. (See id., at 5:18-20.)

Defendant argues

despite her counsel's ability to file motions, her ability to participate remains constrained as she has no reliable access to a computer and cannot depend on timely receipt of mail. (See id., at 6:9-18.) Defendant reasserts the public has an interest in maintaining the integrity of the pending criminal action and thereby an interest in preventing civil discovery from circumventing the limits of criminal discovery. (See id., at 7:3-15.) Defendant also reasserts

the alternative request of staying discovery would be judicially efficient as it would prevent the Court from having to review each discovery dispute arising from an assertion of privilege against self-incrimination. (See id., at 7:22-25.)

The Court

will deny the Motion. The Court agrees with Plaintiff the first Keating factor does not weigh in favor of granting a stay because this action does not arise from the same or related transactions as the homicide in the criminal action. The instant action is somewhat related to the criminal action to the extent the alleged fraudulent transfers occurred between Defendant and her former husband and during the years leading up to his murder. Otherwise, this action for alleged fraudulent transfers occurring in 2021 appears wholly unrelated to the homicide of Defendant's former husband underlying the criminal action. The elements to be resolved in this action^[2] would not reasonably produce material information that could be used to prosecute Defendant for orchestrating the murder of her former husband. Thus, the Court finds the extent to which Defendant's Fifth Amendment rights are implicated is low.

The Court also

finds the second Keating factor weighs against granting a stay. Granting a stay of about one year until resolution of the criminal action would contravene Plaintiff's interest in efficiently resolving this action, which is already more than two years old. The Court further acknowledges because Plaintiff has filed three notices of lis pendens, the financial risk if this matter is stayed is not so high. The Court also finds Plaintiff's evidence Defendant continues to fraudulently transfer assets insufficient, as it is only supported by Plaintiff's counsel's declaration testimony which is based on Defendant's historical fraudulent transfers. Nonetheless, Plaintiff's interest in efficiently resolving this action remains high.

The Court

finds the third Keating factor weighs against granting a stay. The Court acknowledges Defendant's difficulties in accessing counsel and computers or telephone while incarcerated. However, as Plaintiff points out, Defendant's counsel has been able to litigate the related case and makes no showing that he will be unable to effectively litigate this action. Moreover, it is unreasonable to delay the instant action because Defendant would continue to face the same constraints in the future if she remains incarcerated upon resolution of the criminal action, which could remain pending for years given

the gravity of the charges against her. Thus, overall, this factor weighs against granting a stay.

Next, the

Court finds the fourth Keating factor weighs against granting a stay. The Court would likely face some discovery motions and other issues raised by Defendant asserting her Fifth Amendment privilege. However, defendants may not invoke a blanket privilege against self-incrimination with respect to all discovery. (See *Fuller v. Superior Court* (2001) 87 Cal.App.4th 299, 308.) The trial court must be given the opportunity to determine whether particular questions would elicit answers that “support a conviction” or that “furnish a link in the chain of evidence needed to prosecute the witness” (*Id.*) Additionally, as the Court discussed above, there is not much overlap in the issues to be resolved in this action and the criminal action such that the Court expects a voluminous number of discovery issues to arise due to Defendant asserting her privilege. Further, the Court has an interest in efficiently resolving its cases; a stay would contravene that interest. Thus, this factor weighs against a stay.

The Court

finds the fifth Keating factor is neutral as there is no evidence of nonparty interest in this private civil action.

The Court

finds the sixth Keating factor weighs against granting a stay. The Court is unpersuaded by Defendant’s argument the public’s interest in the integrity of the criminal justice system would be affected if a stay is not granted because discovery in this action could be exploited in the criminal action. As stated above, the Court does not find a substantial overlap in the issues to be resolved in this action and the criminal action such that much, if any, discovery produced in this action could be used against Defendant in the criminal action. Moreover, “The overall interest of the courts that justice be done may very well require that the compensation and remedy due a civil plaintiff should not be delayed (and possibly denied).” (*Avant!*, 79 Cal.App.4th at 882.) This case has been pending for well over two years and any any additional delay would go against both the public’s and judiciary’s interests in the administration of justice efficiently.

For the

reasons stated above, the Court finds a stay of discovery is not warranted. Additionally, the Court is unpersuaded by Defendant's argument she would be unable to meaningfully participate in discovery without waiving her privilege. Defendant has no absolute right not to be forced to choose between testifying in a civil matter and asserting her Fifth Amendment privilege. (See *id.*, 79 Cal.App.4th at 885.) Further, Courts have devised procedures designed to accommodate the specific circumstances of each case, including allowing civil defendants to invoke the privilege against self-incrimination, conferring an immunity on the party invoking the privilege, or precluding a litigant from waiving the privilege and testifying at trial to matters upon which the privilege has been asserted. (See *Fuller*, 87 Cal.App.4th at 308.) Should Defendant wish to litigate whether certain, specific discovery requests improperly implicate her right against self-incrimination, the Court stands ready to address the issue as needed.

Based on the foregoing, the Court DENIES Defendant's Motion for a Stay, or Alternatively, for a Stay of Discovery.

VI.
CONCLUSION

Based on the foregoing, the Court DENIES Defendant's Motion for a Stay, or Alternatively, for a Stay of Discovery.

IT
IS SO ORDERED.

DATED: August 21, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] Under the UVTA, a

transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation without receiving a reasonably equivalent value in exchange for the transfer or obligation, and the debtor either: (1) was engaged or was about to engage in a business or a transaction for which the remaining assets of the debtor were unreasonably small in relation to the business or transaction; or (2) intended to incur, or believed or reasonably should have believed that the debtor would incur debts beyond the debtor's ability to pay as they became due. (See Civ. Code § 3439.04(a)(2).)